

ONTARIO
SUPERIOR COURT OF JUSTICE

B E T W E E N:

Tammy Spittal and Krystle Spittal

Plaintiffs

- and -

Antonito Thomas and Primmum Insurance
Company

Defendants

P. Dye, for the Plaintiffs

M. Isaacs & J. Carter, for the Defendant
Primmum Insurance Company

HEARD: April 18, 2006

Justice B. Glass

Hearing to Determine If Plaintiffs Injuries Meet the Test of Serious Permanent Impairment of an Important Physical Function Pursuant to S. 267.5(5) of the Insurance Act of Ontario

[1] The two actions have been consolidated at the commencement of trial. Both plaintiffs commenced personal injury claims following a rear end motor vehicle accident on March 28, 2002. The defendant Antonito Thomas failed to stop his vehicle and ran into the back of a vehicle driven by Tammy Spittal. Krystle Spittal was a passenger in the car driven by her mother, Tammy.

[2] The defendant Primmum Insurance Company is the insurer of the vehicle driven by Tammy Spittal. Because Mr. Thomas was not insured, the plaintiffs pursued the personal injury claims pursuant to the uninsured motorist part of their own insurance policy.

[3] The parties for this motion rely on the evidence presented during the course of the trial. They have based their submissions on facts provided and cases together with the trial evidence presented to the jury.

[4] I have reserved this decision. The ruling was placed in a sealed envelope to be opened after the jury's verdict.

[5] Both plaintiffs have claimed physical injuries flowing from this motor vehicle accident. Both have not claimed impairment to a psychological or mental function.

Issue

[6] Has each plaintiff sustained permanent and serious impairment of an important physical function pursuant to s. 267.5(5) of the Insurance Act of Ontario?

Analysis

[7] Both plaintiffs experienced whiplash type injuries as a result of Mr. Thomas running into the rear of their vehicle. The debate is whether or not the injuries were minor. This trial is now taking place slightly over four years after the accident, and both plaintiffs claim to continue to experience neck and back pain to a significant degree. Tammy claims to be in need of undergoing a carpal tunnel release procedure in June 2006.

[8] Tammy had four accidents prior to this accident of March 28, 2002. She testified that she did not have continuing neck and back problems at the time of the accident with Mr. Thomas. The most recent accident Tammy had prior to March 28, 2002 was a slip and fall in a pothole in February 2002 when she injured her left foot, ankle and fell to the ground landing on both hands. She is not suggesting in this trial that any injury from the slip and fall or from any prior accident has been aggravated by the Thomas rear end collision.

[9] Tammy did not go to hospital by ambulance from the accident scene. Krystle did. Tammy remained at the accident waiting for the police to investigate. Following the police investigation, Tammy attended the hospital to pick up her daughter, Krystle. Injuries at the hospital for Tammy were neck, back and right foot but there was no mention of her right hand. She was referred to the Canadian Back Institute for her neck and back pain. Treatments were scheduled for a six week period. She did not keep all appointments. Over a year after the accident, Tammy noted that she began to notice pain in her right hand and wrist. This has been diagnosed as carpal tunnel syndrome. In fact, the syndrome has been diagnosed in both hands and wrists. Tammy advised that she experiences headaches as well.

[10] Krystle complained of back and neck pain at the accident scene. She was transported to the hospital by ambulance. She testified that she continues to experience neck and back pain.

[11] Krystle was receiving home schooling because of a difficulty in working in a standard school classroom. Following the accident, Krystle found that she had more headaches, had a

harder time concentrating and if doing home schooling she had to work in shorter time periods. She has difficulty arranging her hair. She cannot stand or sit for very long.

[12] Doctors for the plaintiffs and the defendant have testified taking opposing positions about whether or not the injuries sustained are serious and permanent injuries of an important physical function.

[13] Dr. Mahoney is a hand surgery expert who opined that he would not recommend carpal tunnel release surgery for Tammy this year. He thought that the use of a splint should be the first process. He did not think that if the carpal tunnel problem were related to the accident that it was a serious and permanent impairment of an important physical function.

[14] Dr. Woolford thought the surgery was needed, that the injury was serious and permanent. In addition, he concluded that if the patient was complaining of headache, sore neck and back four years after the accident, the injuries should be considered permanent and serious to an important physical function.

[15] Dr. Paitich thought that Krystle had a minor whiplash injury that should have repaired in a few weeks. He did not think there was a serious and permanent impairment of an important physical function.

[16] The most significant evidence that assisted in assessing the evidence of both plaintiffs as well as the doctors is the video surveillance. Mr. Hoyte watched both plaintiffs on a number of days. His videotapes do not record on consecutive days. They show Tammy driving a car, getting in and out of a car without difficulty, carrying what appears to be a garbage can, cutting the grass with an electric lawn mower, flipping the electrical cord with her right hand without difficulty, and most damaging of all holding a weed whacker or edge trimmer with her right hand to cut the grass for an extended period of time. She did not use both hands with the edge trimmer. She used her right hand alone for well over half an hour. She swung the edge trimmer with her right hand in the motion of a pendulum. At no time did Tammy have any difficulty using this edge trimmer with her so-called injured right hand for which she is to have carpal tunnel release surgery. This video was taken in June and July 2004. That is more than two years after this accident. She claimed to experience the carpal tunnel pain slightly over a year after her accident. She had testified that she could not hold a cup in her right hand and that she dropped cups if holding them in that hand. Yet, in the video surveillance she carried a cup of coffee on several occasions without any difficulty.

[17] The video surveillance depicts a person who did not have any difficulty walking, bending over, holding an object of more than slight weight in her injured right hand for an extended period of time, getting in and out of a motor vehicle without difficulty, and driving a motor vehicle.

[18] First of all, the video belies the severity of the carpal tunnel problem as well as neck and back injuries of a serious and permanent nature. It suggests that Tammy does not have a problem of any seriousness with her right hand and wrist. In addition, she can hold onto objects

in her right hand easily. Tammy can drive a car. She can lift objects. She can bend over towards the ground. She can flip an electrical cord in a whipping manner. As she drove, she did not appear to have any difficulty turning her head so that she did not appear to have any neck difficulty. She could twist her back with ease.

[19] In a nutshell, Tammy demonstrated that she had none of the problems that are the subject of her claims. It appears that she recovered from any injury she sustained at this rear end motor vehicle accident.

[20] Her only answer to the videotape of her activities is that the taping must have been done on her good days. I find that answer to be preposterous.

[21] Without the video of Tammy, a court might have had difficulty deciding whether or not Tammy had encountered a permanent, serious impairment of an important physical function. Turning one's head, bending her neck, bending over towards the ground to pick up objects, twisting from side to side, holding onto objects in her right hand are all possible important physical functions for anyone; however, she was not in the workforce and had not been since 1995. Pain might be some discomfort but in her case it was not important for her activities. She did not do the housework before the accident. Her daughter did. She was a person who had been physically inactive for years because of her asthma and experiences with pneumonia.

[22] Dr. Mahoney is a hand surgery expert. He noted that when he tested Tammy's grip, she had a weaker grip in her right hand. However, Dr. Mahoney noted that grip has nothing to do with carpal tunnel syndrome. This tends to indicate that the plaintiff was either faking a problem with the grip in her right hand thinking that it was a feature of carpal tunnel syndrome or that there is some other cause for the grip being weaker. In addition, the doctor noted that Tammy had carpal tunnel problems in both left and right hands. It is reasonable to conclude that the carpal tunnel issue is not related to the March 28, 2002 accident.

[23] Krystle was seen by Dr. Paitich. He concluded that she had a minor whiplash injury that should have resolved within a few weeks. His opinion is that Krystle is not experiencing a serious and permanent impairment of a serious physical function. Basically, Dr. Paitich concluded that Krystle has inflated discomfort for the sake of her court action. Every ache or pain does not become a serious permanent injury to an important bodily function.

[24] Interestingly, again one might find that the medical evidence might leave a court up in the air about whether or not there was a serious and permanent impairment of an important physical function. Again, though, Mr. Hoyte had conducted video surveillance of Krystle Spittal. The videotape showed a young woman who could stand for more than a momentary period of time without difficulty. She could raise her hand and arms over her shoulders and adjust her hair. She could bend over and lean into a car to talk with a person inside. She had no problem entering or exiting a car. Krystle demonstrated that she could walk easily. In other words, this person was not experiencing any difficulty with physical movements. She did not have a permanent impairment to an important function.

[25] Krystle accepted that she was shown on the video. She did not provide any explanation for what was shown on the videotape.

[26] Courts have determined that serious and permanent impairments to important physical functions can vary from one person to another. Often, soft tissue injuries do not have the same exhibition of injury as seeing a broken bone might. Doctors must rely on the patient to report symptoms. In *Meyer v. Bright et al.* [1993] O.J. No. 2446, the Ontario Court of Appeal handled a trilogy of cases examining applications by injured persons for rulings that they had injuries that were causing serious permanent impairment of a important bodily function. The legislation for this Spittal/Thomas accident focuses on permanent serious impairment of an important physical, mental or psychological function. That is found in s. 267.5 (5) of the Insurance Act for Ontario.

[27] The Meyer decision (*supra*) applied a three-step process. One, has the person sustained permanent impairment of a bodily function by a continuing injury which is physical in nature? Two, if yes, is the bodily function, which is permanently injured, an important one? Three, if the bodily function is an important one, is the impairment of the important bodily function serious?

[28] With the Spittals claims, one might find injuries sustained; however, for the reasons that follow, one would not find the injuries to be a permanent impairment to an important and serious bodily function.

[29] With the case before this jury though, the surveillance tapes provide a demonstration of each plaintiff in action in ways that would show the claimed injuries if they existed. The videotapes illustrate that the two plaintiffs do not have the degree of complaint that they set out in their claims. Rather, the tapes portray two people who appear to have normal physical movement abilities. The soft tissue injuries experienced at the time of the accident appear to have repaired. In other words, there is not a permanent serious impairment to an important physical function. As was suggested by several witnesses, minor whiplash injuries usually resolve in a few weeks to a few months at most. That development has occurred in the case of both Tammy and Krystle Spittal. In other words, for Tammy and Krystle any impairment of a physical function is not permanent and serious to an important physical function. Further, with each plaintiff, the injury should have resolved itself. The videos of both plaintiffs demonstrate that if the plaintiffs were reporting to their doctors as they indicated, then they were misleading their doctors.

[30] Neither plaintiff has sustained injuries within s. 267.5(5) of the Insurance Act. Any claim they have advanced in their statements of claim does not meet the requirements of this section. Therefore, they are not entitled to pursue a claim for non-pecuniary loss.

(original signed by Justice B. Glass)

Justice B. Glass

Released: April 19, 2006

COURT FILE NO.: 25777/03 & 28963/04

DATE: 2006-04-19

ONTARIO

SUPERIOR COURT OF JUSTICE

B E T W E E N:

Tammy Spittal and Krystle Spittal

Plaintiffs

- and -

Antonito Thomas and Primmum Insurance
Company

Defendants

REASONS FOR JUDGMENT

Justice B. Glass

Released: April 19, 2006